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Concept to commissioning
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MASTPRO
Masters in Projects

CONTRACT / PURCHASE ORDER

Seller Details:	Purchase Order Details:
NIHVA Technologies Pvt Ltd. 187 G Block, Thermax Chowk, MIDC Chinchwad, Pune-411019 GSTIN: 27AAECN0437H1ZM	Purchase Order No.: MCEPL/MANI/2017-18/118 Purchase Order Date: 21.03.2018 No. Pages: 12 Enclosed: Technical Specification Sheets Amendment No.: Amendment Date:
Invoice To:	**Delivery Address:**
Mastpro Consulting Engineers Pvt. Ltd. S 31/2, Indranagar, P14, Dahunakar Colony, Kothrud, Pune-411029, Maharashtra. India. GSTIN: 27AAJCM7576K1ZP	Mastpro Consulting Engineers Pvt. Ltd. C/O Mars International India Pvt Ltd, Khed city, At Post-Nimgaon, Taluka-Khed Plot no. I-09/IIA Dist-Pune. 410505 India.
Please Quote Our Purchase Order No. In all your correspondence	

Kind Attn: Mr. Vijay.

Reference: Your final offer Dated 17th February 2018, 08th March 2018, 16th March 2018 and subsequent discussions with Mr. S. Joshi / Mr. Mahesh, and Technical Team of Mars India International Pvt. Ltd.

Subject: Contract / Purchase Order for Supply, delivery to site & Installation of Dock Leveller, Dock Shelter & various doors at Mars international India Pvt. Ltd, Khed City, Pune.

Dear Sir,

We are Pleased to release the Contract / Purchase Order for Supply, delivery to site & Installation of Dock Leveller, Dock Shelter & various doors as per attached Technical Specifications.

Kindly go through all the details of the contract / Purchase Order and give your confirmation / acceptance.

We look forward to a long and fruitful association together.

Thanking you,

Yours faithfully,

M. Kacambelkar
MASTPRO Consulting Engineers Pvt Ltd.

Mastpro Consulting Engineers Pvt. Ltd.

Annexures to Contract / Purchase Order.

1. Technical Specification Sheet.

1. Price Schedule:

Sr. No	Description	Qty	Unit	Rate In INR	Net Amount INR
A	NIHVA Make Dock Leveller (2.5 TON) Supply & Installation 2 cylinder for Deck & 1 cylinder for LIP Operator by Standard Control Panel (Deck Up / Down / Lip Up / Down) Rubber Bumpers				
1	Size: (W) 2500 mm X (L) 2500 mm	1	No		
B	ASSA ABLOY Make Motorised Sectional Door (100% imported from Europe) Supply & Installation. Specification: Vertical Lift Sectional Door with Windows, Manual chain, Safety Edge & Push Button				
1	Size: (W) 2400 mm X (H) 2700 mm	1	No		
2	Size: (W) 2000 mm X (H) 2000 mm	1	No		
C	Albany Rapid Rollup Door HS9020G. Supply & Installation. (100% Imported with all components – made in Germany)				
1	Size: (W) 2500 mm X (H) 2500 mm	3	No		
2	Size: (W) 3000 mm X (H) 3000 mm	1	No		
D	Assa Abloy Make Dock Shelter. Supply & Installation.				
1	Retractable Dock Shelter (100% Imported products from Europe) Size:(W) 3200 mm x (H) 3250 mm	1	No.		
E	NIHVA make Motorized Rolling Shutter Powder Coated- GI Slat:1.0 mm Thk, Curved Type Profile with heavy duty Shaft, Guide, Hood Cover, Motor - Indirect Drive. Supply & Installation				

i) Delivery of Dock Leveller, Dock Shelter & all the doors / accessories shall happen within 8 weeks from the date of Contract/ Purchase Order. Seller shall obtain dispatch clearance in writing from Buyer before dispatch of material to site.

3. Payment Terms:

i) 50% Advance along with Purchase Order against ABG.
ii) 40% against delivery of material at site.
iii) 10% on final completion and acceptance within 45 days from the date of final completion and submission of invoice against PBG valid for 12 months.

Standard Terms and Conditions for Purchase of Goods / Services:

A. Definitions:

1. **"Buyer** "means the company who buys the goods or services.
2. **"Seller"** means the name of the organization or person whose name is stated on the Purchase Order.
3. **"Parties" or "Party"** means the Buyer and or Seller.
4. **"Goods" / "Services"** means the products, services or software to be supplied to Buyer by the seller including documentation.

B. Price and Payment:

1. The price shall be as stated in the purchase order document unless otherwise agreed in writing between the parties and unless otherwise so stated, inclusive of any charges for packaging / packing, forwarding, shipping, carriage, insurance and delivery to delivery address of the Buyer stated in the purchase order and shall constitute full and final compensation to the Seller for all the Seller's expenses, overheads and profits related to supply of goods, performance of the services and compliance with the contract / Purchase Order (hereinafter referred to Price).
2. The Buyer shall pay applicable Goods and Services Tax (GST) to the Seller as stated in the purchase order.
3. No increase in the Price (whether on account of increased raw material, labour or transportation costs, fluctuation in rates of exchange or otherwise) or variation may be made to the contract / purchase order without prior written consent of the Buyer.
4. Payment will be made on the actual weight or quantity executed at site by seller and Buyer's (Jointly agreed and approved) records shall be considered as final and binding in this regard.
5. Seller must submit their all statutory details like registration number, incorporation details, shop act, PAN / TAN details, Account details etc.

1	Motorized Rolling Shutter Size: (W) 3000mm x 3000 (H)mm	1	No.	[redacted]	[redacted]
F	**Albany Rapid Rollup Door HS9020G** **(100% Imported with all components – made in Germany)**				
	Supply & Installation of Accessories				
1	Interlocking of High Speed Doors	4	No	[redacted]	[redacted]
2	Interlocking of Sectional Door & Dock Leveller	1	No	[redacted]	[redacted]
3	Photosensor	4	No	[redacted]	[redacted]
4	OPEN /CLOSE / STOP switches	5	No	[redacted]	[redacted]
5	LOTO Switch	5	No	[redacted]	[redacted]
G	**Automatic Double Leaf Sliding Door with Rockwool Infil Panel of 50mm thick. Supply & Installation.**				
	Operator: ASSA ABLOY MAKE (100% Imported from Europe)				
	Panel: 50 mm thick Rock wool insulated				
	Panel Sheet: One Side S S sheet & One Side MS Powder Coated Sheet				
	Hold Open time: 0 - 60 Sec				
	Radar sensor from outside				
1	Size: (W) 2000 mm X (H) 3000 mm	1	No	[redacted]	[redacted]
Grand Total Supply & Installation (A+B+C+D+E+F+G)					[redacted]

GST Charges extra as applicable.

2. Delivery of Material / Erection and Overall Project Time Lines:

5. Seller shall submit complete manufacturing plan right from procurement of material till dispatch to the site immediately after receipt of Purchase Order / contract.
6. Seller shall supply all the materials to the site as per approved drawings.
7. All the materials shall be of reputed make as specified in the BOQ, Technical Specification Sheet. No deviation other than the Makes specified shall be accepted.
8. Seller shall erect all the Doors, Dock Leveller, Dock Shelter accessories, as per approved drawings / BoM. Erection plan / methodology shall be submitted immediately after receipt of Purchase Order / contract.
9. Seller shall carry out necessary finishing activities as necessary.
10. Welding shall be carried out by Qualified / certified welders.
11. Shot blasting / painting shall be carried out by qualified workmen.
12. Seller shall deploy qualified/competent team at site to carry out the erection activity.
13. All necessary labor, equipment, tools and tackles shall be in Seller scope of supply.
14. All steel materials supplied shall be in a sound condition, of recent manufacture, free from defects, loose mill scale, slag intrusions, pitting, flaky, rust, etc. and be of full weight and thickness specified.
15. Seller shall provide inspection call to Mastpro Team / Associate / client with submission of quality assurance plan in advance. For the items bought out from manufacturer, dealers, test certificates, as per relevant standards, as issued by manufacturer shall be submitted to Mastpro. However, prior approval shall be obtained from Mastpro for procurement of the item from Manufacturer, dealers.
16. Field Quality Plan / Quality control system: Vendor shall make arrangements for testing of all materials in accordance with Quality control plan / Field quality control plan as approved by Mastpro, If required for this purpose, an exclusive testing laboratory shall be established at site, Vendor shall deploy a well experienced quality control engineer to monitor all QC activities at site as per approved FQP.
17. Seller shall submit periodic status report, on daily as well as weekly consolidated basis, to Mastpro on the progress of the contract.

E. Deliver, Passing of Title and Risk:

1. Time of delivery is the essence of this contract.
2. The Seller shall deliver the Goods along with all relevant test certificates, if any, to the address mentioned in the Contract / Purchase Order on the date or within the period stated in the Purchase Order, during the usual business hours of the Buyer.
3. One copy of the invoice or any other document mentioning the Purchase Order number should be handed over to the transporter/ freight forwarder with the Goods.
4. If any samples are furnished by the Buyer which relates to the ordering information, the same should be returned in the good condition with supply of Goods.
5. Delivery shall be in accordance with the instructions of the Buyer. Seller shall be responsible for providing suitable protection and packing for the Goods to ensure their safe arrival at the delivery address in an undamaged condition. The Buyer shall not be obliged to return to the Seller any packaging or packing materials.

6. The payment terms will be as stated in purchase order. The Seller shall invoice the Buyer for the Price in accordance with the agreed payment terms. Each such invoice shall be submitted to the address specified for such purpose in the contract / purchase order and shall quote purchase order number and include supporting documentation. Terms of payment shall be computed from the date of receipt of correct invoice and the receipt of Goods by the Buyer, unless otherwise stated in the purchase order.
7. If the Buyer disputes any invoice in whole or in part, the Buyer may withhold payment in respect of any part of an invoice submitted by the Seller without liability for interest, where the amount in question is the subject of any dispute or difference between the Buyer and the Seller. The Buyer and the Seller shall endeavor to settle and adjust any disputed amount forthwith.

C. Goods and Service Tax (GST):

1. The Seller shall at all times ensures that all the necessary compliance under the applicable GST law be adhered to with respect to the contract / purchase order entered in to with Buyer. Any non-compliance will entitle Buyer to cancel the contract / Purchase Order with necessary indemnification from the Seller for loss of GST incurred by the Buyer due to such non-compliance.
2. The Seller shall (i) raise invoice and any other documents as may be required for GST, for any supplies made under this contract; (ii) file applicable returns (covering all supplies made to the Buyer) as per GST law before the due date; (iii) pay GST on or before due date as per GST law; and (iv) fulfill all other statutory obligations under the GST law before the due date. Any non-compliance or defective compliance by the Seller will automatically entitle the Buyer to withhold any payment that may be due to Seller. Further, the Buyer shall be entitled to adjust any losses (of input tax credit, which may be incurred by the Buyer) from any payment due to Seller or shall be entitled to recover the payment from the Seller.
3. The Seller shall ensure that all GST related information of the Buyer shall be accurately mentioned on the invoice and all other documents that may be generated against the Purchase Order raised by the Buyer.

D. Quality, Inspection and Testing of Goods (In Accordance with Technical Specifications Provided Along with Contract Purchase Order):

1. The Buyer may inspect, review and / or test the Goods at all reasonable times during manufacture, processing, and storage or otherwise and the Seller shall provide the Buyer with all the facilities and assistance reasonably required for such inspection and testing.
2. Notwithstanding any such inspection or testing, the Seller shall remain fully responsible for the Goods and such inspection or testing shall not diminish or affect the Buyer's rights under or pursuant to the contract.
3. Failure of the Buyer to inspect, test or bring to the attention of the Seller any defect or non-conformity of the Goods shall in no way relieve the Seller of its obligations hereunder within or beyond the warranty period.
4. In case of complaint regarding quality of work, buyer has right to reject the work and execute the same at the risk and cost of Seller.

G. Limitation of Liability:

1. Notwithstanding anything stated herein, in no event shall either Party be liable hereunder for loss of production, loss of profit, loss of use, loss of contract / Purchase Order or any incidental, special, indirect, consequential, or punitive damages even if advised in advance of the possibility of such damages.

H. Warranty and Representations:

1. The Seller guarantees performance of the Goods in accordance with performance criteria as represented by the Seller.
2. The Seller undertakes and warrants and guarantees to the Buyer that
   c) All Goods will comply in all respects with the contract / Purchase Order and as required by regulations and by law including any amendment, extension, re-enactment or replacement of statutes or statutory provisions;
   d) All Goods be of satisfactory quality and be fit for their intended purpose;
   e) Neither the Goods nor the provision of any Services infringe, nor does the importation, use or resale of any Goods infringe the patent, copyright, design right, trademark or other intellectual property rights of any other person, and the Seller shall defend, indemnify and hold harmless the Buyer from any intellectual property claim;
   f) It will comply with the policies set forth by the Government and the Buyer as amended from time to time, including without limitation, the health, safety and Environment policy, code of Business Ethics and conduct.

3. The Goods and Services shall be supplied with warranty for a period of at least 18 months from the date of delivery or at least 12 months from the date of successful Installation / commissioning, whichever is later or as may be mutually agreed in writing between the Parties.
4. Without prejudice to any other remedy, if any Goods, in whole or in part, are not supplied in accordance with this Contract / Purchase Order, the Buyer shall have the right, at its option, to require the Seller to supply replacement Goods forthwith at no cost to the Buyer or to treat the Contract as discharged by the breach of Seller and require the repayment of any part of the Price which has been paid or to engage, at the Seller's cost, a third party to re-perform, replace or repair any part of the Goods.
5. A third party to re-perform, replace or repair any part of the Goods. The Seller shall defend, indemnify and hold harmless the Buyer against all liability, loss, damages, cost and expenses (including legal costs and expenses) awarded against or incurred or paid by the Buyer as a result of or in connection with breach of any warranty given by the Seller and against any fines, costs, or expenses arising from the Seller's failure to comply with any applicable laws, rules or regulations.

I. Intellectual Property Rights:

6. The Buyer reserves the right to refuse acceptance of the Goods which are not in accordance with the delivery instructions of the Buyer or not in accordance with the Contract / Purchase Order issued by the Buyer.
7. To the extent that any Goods contain toxic, corrosive or other materials hazardous to health or property, a prominently displayed notice to that effect must accompany each delivery of the Goods.
8. Title and interest in the Goods shall pass from the Seller to the Buyer upon the earlier of:
   a) Their proper deliver to the Buyer; or
   b) As the Goods are paid for by the Buyer, upon payment of the Goods by the Buyer. If the Buyer rejects the Goods due to any defect, the Seller shall reimburse the Buyer for any amounts the Buyer may have paid for such rejected Goods and their associated transport and logistics costs; and title in the rejected Goods shall revert to the Seller. Risk of loss or damage to the Goods shall pass from the Seller to the Buyer upon acceptance of the Goods by the Buyer at the agreed delivery address. In no event shall the Buyer be deemed to have accepted any Goods until the Buyer has had a reasonable time to inspect them following delivery or until after any latent defect in the Goods has become apparent to Buyer.
9. In case of international transactions, any agreed trade term shall be construed in accordance with the INCOTERMS in force as stated in the Contract / Purchase Order.
10. If the Goods and or Services are not delivered as per the delivery schedule, the Buyer shall be entitled to liquidate damages from the date on which delivery should have taken place. The liquidated damages shall be payable at a rate of 0.5 percent of the total price stated in the Purchase Order, for each commenced week of delay. The liquidated damages shall not exceed 5.0 percent of the total value of the Purchase Order.
11. The liquidated damages shall forthwith become due upon Buyer's demand in writing.
12. If the Goods and or services are still not delivered, the Buyer shall be eligible to terminate the contract / Purchase Order without any liability and without prejudice to its rights to claim liquidated damages and stake claim to settle all the payments made to Seller under this contract / Purchase Order.
13. The Buyer shall also have the right to terminate the contract / Purchase Order by notice in writing to the Seller, if it is clear from the circumstances that a delay in deliver may occur.

F. Insurance:

1. The Seller shall, at its own cost, effect and maintain during the term of the Contract / Purchase Order, all such insurances as may be required by law include marine insurance coverage, commercial general liability, etc. The Commercial General Liability (including Third Party Liability) insurance shall be for not for an amount equivalent to not less than U.S 0.5 million Dollar per occurrence. The Seller's insurance shall be written or endorsed such that the insurers shall have no right of recovery against the Buyer to the extent of any indemnities granted hereunder. The Seller shall provide evidence of such insurance cover when requested by Buyer. All insurance required above shall be primary to any insurance coverage available to the Buyer. The above stated minimum requirements are not intended to indicate the amounts or types of insurance that Seller needs or may ultimately need and shall not alter or affect the Seller's liability under the contract / Purchase Order.

M. Assignment and Subcontracting:

1. The Contract / Purchase Order between the Buyer and Seller for the sale of Goods / Services shall not be assigned or transferred, nor the performance of any obligation sub-contracted, in either case by the Seller, without the prior written consent of the Buyer.

N. Adherence to Applicable Law:

1. The Seller shall perform its obligations under this Contract / Purchase Order in compliance with all applicable laws including but not limited to anti-bribery, anti-money laundering and anti-corruption laws in any jurisdiction in connection with its activities pursuant to this Contract / Purchase Order.
2. The Seller from time to time, at the reasonable request of the Buyer confirm in writing that it has complied with its covenants under this clause hereinabove and will provide any information reasonably requested by the Buyer in support of such compliance.

O. Waiver:

1. The failure by either Party to enforce at any time or for any period, any of the terms and conditions herein shall not be construed as a waiver of such term(s) and conditions(s) or of the right, to enforce such terms and conditions of this Contract / Purchase Order subsequently.

P. Severability:

1. If any term or provision of this Contract / Purchase Order is held invalid, illegal or unenforceable for any reason by any court of competent jurisdiction such provision shall be served and the remainder of the provisions hereof shall continue in full force and effect as if this Contract / Purchase Order had been agreed with the invalid, illegal or unenforceable provision eliminated.

Q. Miscellaneous:

1. If the Contract / Purchase Order is issued pursuant to another existing agreement between the Buyer and the Seller, the terms and conditions of the referenced agreement shall apply to the provision of the Goods / Services hereunder and shall supersede in the event of any conflict with these terms and conditions.

R. Entire Agreement:

1. The terms and conditions stated in this Contract / Purchase Order supersede all previous agreements, correspondence and understandings between the Parties concerning the purchase of Goods to be supplied under this Contract / Purchase Order. No promise, agreement, representation or modification to this Contract / Purchase Order shall be of any force or effect between the Parties, unless specifically agreed in writing by the Buyer.

S. Governing Law and Jurisdiction:

19. All the Material Handling Equipment and Welding equipment deployed for the work shall have exhaust arrangement to exhaust the smoke outside building. Smoke exhaust inside the building is not allowed.
20. Seller shall submit copy of Account Pass Book of all the persons deployed at site.
21. Seller shall deploy full time Qualified Safety Office on site from the date of commencement of work. No work is allowed without Safety officer on site.

Penalty clause for violation of Safety Rules:

(i) Other Than Serious Violation – A violation that has a direct relationship to job safety and health, but probably would not cause death or serious physical harm. A proposed penalty of up to Rs.1000 for each violation is discretionary.

(ii) Serious Violation – A violation where there is substantial probability that death or serious physical harm could result and that the principal contractors knew, or should have known, of the hazard. A mandatory penalty of up to Rs.5000 for each violation.

(iii) Willful Violation – A violation that the principal contractor knowingly commits or commits with plain indifference to Mars standard. The vendor either knows that what he or she is doing constitutes a violation or is aware that a hazardous condition existed and made no reasonable effort to eliminate it. Penalties of up to Rs. 10,000 may be proposed for each willful violation,

(iv) Repeat Violation – A violation of any standard, regulation, rule, or order where, upon re-inspection, a substantially similar violation can bring a fine of up to INR. 10,000 for each such violation.

U. Standards:

1. Standards for Material, Manufacturing, quality and Erection: All the materials shall be manufactured as per Indian Standards / MARS standard (latest revisions).

General Terms and Conditions for Purchase of Goods / Services:

2. All the items shall be supplied directly to the project site.
3. All machinery such as cranes, hydra, JCBs, forklifts, transport trucks, trolleys, etc. necessary for movement and installation of materials shall be organized by the Seller if necessary.
4. All necessary tools and tackles such as screw driver set, power screw drivers, cutting pliers, nose pliers, spanner sets, adjustable spanners, hole saw cutter set, bending tools, torque wrenches, hack saw blades, pipe wrenches, flat / round files, drilling machines, welding machines, steel bar bending tools / templates, spade, shovel, hammer etc. shall be organized by the Seller.
5. All necessary measuring instruments such as measuring tapes, digital millimeters, electrical testers, meggers etc. shall be organized by the Seller.
6. Seller shall make their own arrangements for necessary food, drinking water and accommodation for their labour and employees posted at the site. Similarly, food and drinking water required at the site, during the construction operations, shall also be in scope of Seller.

---------- End of Contract / Purchase Order ----------

1. Unless otherwise agreed in writing between the Parties,
   a) This Agreement shall be governed by and construed in accordance with the laws of India.
   b) All disputes arising in connection with this Contract / Purchase Order or its validity shall be finally settled in accordance with the provisions of Arbitration and Conciliation Act, 1996 of India (as amended from time to time), without recourse to the ordinary courts of law. The seat of arbitration shall be Pune, India. The number of arbitrators shall be 3 (three). The language of the arbitral proceedings is English.
   c) The award of the Arbitral Tribunal shall be final and binding on both the Parties.

T. Safety and Statutory:

2. Seller shall organize all necessary steps to meet statutory requirements such as labour license, PF, ESIC, insurance etc. and also ensure compliance with relevant acts such as minimum wages act, income tax act, employee insurance act etc. for their labour/staff deployed at site.
3. Seller shall organize activities such as receipt of all supply items at site, unloading from the trucks, safe storage at site, movement from storage location to point of construction etc.
4. Seller shall deploy their own security watch and ward to safeguard their supply items from pilferage, Insurance for the supplied items until the completion of all the work.
5. Seller shall maintain updated labour register, with name, age, qualification, salary, attendance details etc. at the site.
6. Seller shall use danger boards and safety posters, wherever required, to ensure safety of the persons during the work at site.
7. Seller shall adhere to all necessary safety norms such as use of helmet, goggles, hand gloves (cut resistant), aprons etc. It is the ultimate responsibility of the vendor in all respect to prevent accidents at the site and safeguard their labour from accidents.
8. Seller shall, at the completion of every work, clear off the waste, debris, which resulted out of the work.
9. Seller shall carry out the work without causing inconvenience to other contract groups at the site. In case of conflicts with other groups, Seller shall ensure that the matter is resolved at once amicably so that the progress of work is not affected.
10. Any damages on the other buildings, structures etc. of the site, if attributable to the acts of labor employees of Seller, shall be rectified and made good by the vendor at their own cost,
11. No child labour shall be employed for execution of the present contract as per child labour prohibition act.
12. No tobacco is allowed inside the factory.
13. Seller shall submit Method statement and Risk assessment one week prior to start of activities at site.
14. Seller shall arrange Pota cabin and Mobile Toilets **(Seller can use Buyer's Toilet)** at site one week prior to start of activities.
15. Seller shall arrange Wheel Choke with all the vehicles entering in to the factory premises.
16. Maximum working hours per day per person shall not exceed 10 hours.
17. All the persons entering in to the factory premises shall undergo Medical test from our certified Doctor and shall have Form No. 7
18. Before commencement of any activity at site, all the persons shall undergo Safety Induction Program.